

An Act

ENROLLED SENATE
BILL NO. 1796

By: Rosino of the Senate

and

Lawson and Hill of the
House

An Act relating to foster care; defining terms; allowing foster parents to use certain caregivers and arrangements for temporary care of foster children; specifying certain time limit on temporary care; requiring certain notice; requiring foster parents to identify certain formal alternate caregiver; specifying requirements for alternate caregivers; requiring certain screenings and home evaluation for alternate caregivers; authorizing respite care by certain foster families; providing for qualifications; authorizing certain informal care arrangements; requiring application of certain parenting standard; prohibiting use of certain informal caregivers; directing promulgation of rules; providing for codification; and providing an effective date.

SUBJECT: Foster care temporary arrangements

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-7-117 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Alternate caregiver" means a person, assessed and approved by the Department of Human Services, who for not more than fourteen (14) consecutive days, relieves a foster parent's day-to-day responsibilities by temporarily assuming care and supervision of the child in the custody of the Department. Such term applies only to traditional, contracted, and kinship foster care;

2. "Informal care arrangement" means an arrangement a foster parent makes with one or more informal caregivers, who may be friends, neighbors, or relatives, for the foster child's occasional care for a period not to exceed seventy-two (72) hours; and

3. "Respite care" means short-term care provided by an approved foster family when foster parents need breaks from day-to-day parenting responsibilities while caring for a child in the custody of the Department.

B. 1. Foster parents may use alternate caregivers, use respite care, and make informal care arrangements to temporarily care for their foster children as provided by this section and rules promulgated by the Director of Human Services.

2. An individual providing care consecutively for more than seventy-two (72) hours shall be an approved alternate caregiver as provided by subsection C of this section or an approved foster family that provides respite care in accordance with subsection E of this section.

3. The foster parent shall notify the Department prior to using an alternate caregiver, respite care, or an informal care arrangement.

C. 1. The foster parent shall identify at least one alternate caregiver, but no more than two, who can fulfill the foster parent's role for the foster child placed in the foster home in case of family emergencies, or when the family needs an extended break for up to fourteen (14) consecutive days.

2. The foster parent may only use an alternate caregiver who has been approved by the Department. An approved alternate caregiver may only provide care for foster families for which the alternate caregiver has been approved by the Department.

3. An alternate caregiver shall successfully complete the screening requirements provided by subsection D of this section and shall meet such qualifications for approval as may be prescribed by the Director through rule.

D. The alternate caregiver and each adult household member in the alternate caregiver's home shall successfully complete:

1. An Oklahoma State Bureau of Investigation name-based criminal history records search;

2. A search of Department records including, but not limited to, child welfare records;

3. A search of any applicable registries including, but not limited to, the child care Restricted Registry under Section 405.3 of Title 10 of the Oklahoma Statutes, the community services worker registry under Section 1025.3 of Title 56 of the Oklahoma Statutes, and the nursing facility nontechnical services worker registry under Section 1-1950.7 of Title 63 of the Oklahoma Statutes;

4. An evaluation of the home to assess the location, condition, and capacity to accommodate the foster child; and

5. Any other requirements prescribed by the Director through rule.

E. 1. Respite care may only be provided by a foster family approved by the Department.

2. A foster family is not limited to providing respite care to only one foster family.

3. To be approved to provide respite care, a foster family shall meet such qualifications as may be prescribed by the Director through rule.

F. 1. Foster parents may make informal care arrangements with informal caregivers for the foster child's occasional care in accordance with this subsection and rules promulgated by the Director.

2. Foster parents shall apply the reasonable and prudent parent standard when selecting an informal caregiver to care for the foster child and shall ensure he or she possesses the maturity and skills to address the child's needs.

3. The foster parent shall not use an informal caregiver who the Department of Human Services has determined is unsafe.

G. The Director shall promulgate rules as necessary to implement the provisions of this section.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 10th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____